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Case Number: 25TRCV01288 Hearing Date: September 22, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday, September 22, 2026

Calendar No.

PROCEEDINGS

Shahe

S. Kekilian v. Michael C. Pepe, et al.

25TRCV01288

1.

Southern Glazer's

Wine & Spirits, LLC's Motion for Discovery of Peace Officer Personnel Records

TENTATIVE RULING

Southern Glazer's Wine & Spirits, LLC's Motion for

Discovery of Peace Officer Personnel Records is denied without prejudice.

Background

Plaintiff's Complaint was filed on April 22, 2025.

Plaintiff was involved in a motor vehicle collision with Defendants. At the time, Plaintiff was lawfully operating a marked police motorcycle.

Pitchess Motion

Pursuant to Pitchess

v. Superior Court (1974) 11 Cal.3d 531, a criminal defendant "could 'compel discovery' of certain relevant information in the personnel files of police officers by making 'general allegations which establish some cause for discovery' of that information and by showing how it would support a defense to the charge against him. In 1978, the California Legislature codified the holding of Pitchess by enacting Penal Code Sections 832.7 and 832.8, as well as Evidence Code Sections 1043 through 1045.

. . . To initiate discovery, the defendant must file a motion supported by affidavits showing 'good cause for the discovery,' first by demonstrating the materiality of the information to the pending litigation, and second by 'stating upon reasonable belief' that the police agency has the records or information at issue. This two-part showing of good cause is a 'relatively low threshold for discovery.'" Warrick v. Superior Court (2005) 35 Cal.4th 1011, 1018-19 (internal citations omitted). A Pitchess motion can also be made in a civil action.

Haggerty v. Superior Court
(2004) 117 Cal.App.4th 1079, 1085.

Thus, peace officer records may be discoverable in civil actions under the mechanisms provided for in Evidence Code Sections 1043 through 1046.

Evid. Code § 1043 states:

"(a) In any case in which discovery or disclosure is sought of peace or custodial officer personnel records or records maintained pursuant to Section 832.5 of the Penal Code or information from those records, the party seeking the discovery or disclosure shall file a written motion with the appropriate court or administrative body upon written notice to the governmental agency that has custody and control of the records, as follows:

(1) In a civil action, the written notice shall be given at the times prescribed by subdivision (b) of Section 1005 of the Code of

Civil Procedure.

(2) In a criminal action, the written notice shall be served and filed at least 10 court days before the hearing. All papers opposing a motion so noticed shall be filed with the court at least five court days, and all reply papers at least two court days, before the hearing. Proof of service of the notice shall be filed no later than five court days before the hearing.

(b) The motion shall include all of the following:

(1) Identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard.

(2) A description of the type of records or information sought.

(3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records.

(c) Upon receipt of a notice served pursuant to subdivision (a), the governmental agency shall immediately notify the individual whose records are sought.

(d) No hearing upon a motion for discovery or disclosure shall be held without full compliance with the notice provisions of this section except upon a showing by the moving party of good cause for noncompliance, or upon a waiver of the hearing by the governmental agency identified as having the records."

A declaration by counsel, on information and belief, may be sufficient. *People v. Oppel* (1990) 222 Cal.App.3d 1146, 1153, n.6. Generally, counsel would have to provide specific facts that the officer committed misconduct. *Warrick*, 35 Cal.4th at 1026; *People v. Hill* (2005) 131 Cal.App. 4th 1089, 1098 overruled on other grounds in *People v. French* (2008) 43 Cal.4th 36, 48, fn. 5. Here,

however, in the context of this civil action, counsel would have to provide, generally, the facts of the instant action and why the materials sought would be material to the underlying litigation.

Haggerty v. Superior Court

(2004) 117 Cal.App.4th 1079, 1087. Evidence of habit, custom and practice may be admissible to prove that the conduct of an officer on a specified occasion conformed with her habit and custom. People v. Gill (1997) 60 Cal.App.4th 743, 749. Further, the scope of

disclosure is not necessarily limited to mere witness contact information. Evid. Code § 1045(a); Haggerty v. Superior Court (2004) 117

Cal.App.4th 1079, 1087.

If the court orders an in camera inspection, the court inspects the records to determine the relevance of the materials to the instant action. People v. Gill (1997) 60 Cal.App.4th 743, 749. The scope of the in camera review is governed by Sections 1045(b) and (c).

Evid. Code Sections 1045(b) and (c) state:

“(b) In determining relevance, the court shall examine the information in chambers in conformity with Section 915, and shall exclude from disclosure:

(1) Information consisting of complaints concerning conduct occurring more than five years before the event or transaction that is the subject of the litigation in aid of which discovery or disclosure is sought.

(2) In any criminal proceeding the conclusions of any officer investigating a complaint filed pursuant to Section 832.5 of the Penal Code.

(3) Facts sought to be disclosed that are so remote as to make disclosure of little or no practical benefit.

(c) In determining relevance where the issue in litigation concerns the policies or pattern of conduct of the employing agency, the court shall consider whether the information sought may be obtained from other records maintained by the employing agency in the regular course of

agency business which would not necessitate the disclosure of individual personnel records.”

Evid. Code § 1045(a) provides broad discovery rights of information relating to an incident that directly involves the peace officer and is the subject of the litigation. *Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1087.

However, Evidence Code § 1045(b)(1) specifically requires the court to exclude from disclosure information consisting of complaints concerning conduct occurring more than five years before the event.

Defendant moves “pursuant to Evidence Code section 1043, for discovery or disclosure of the peace or custodial officer personnel records or records maintained pursuant to Section 832.5 of the Penal Code for plaintiff [a] peace officer [...] of the City of Los Angeles, Department of Airports a.k.a. Los Angeles World Airports (“LAWA”), or information from those records.” (Notice of Motion, p. 2, lines 6-10). The motion is made on the grounds that “[t]he records are material to the subject matter of this action as Plaintiff is seeking recovery of monetary damages for bodily injuries and loss of income/earning capacity.” (Id. at p. 2, lines 10-12).

Defendant contends that Plaintiff has served a privilege log in connection with Plaintiff’s deposition subpoena for records. Defendant’s counsel states: ‘Based on the information provided in the Privilege Log, specifically relating to prior workers’ compensation claims which is in direct contradiction to Plaintiff’s Initial and Amended Responses (both of which are verified under penalty of perjury), I am informed and believe that such records are directly relevant to Plaintiff’s claims for damages on the basis of physical and psychological injuries, as well as Plaintiff’s credibility.’ (Decl., Franklin L. Stoker, ¶ 8).

Plaintiff argues that the motion was improperly served as it was not served upon the governmental agency which has access to the records. Plaintiff also argues that the motion fails to adequately describe with specificity the types of records sought and fails to identify the government agency that has custody and control of the records. Evidence Code § 1043(b)(1) and (2). Further, Plaintiff argues that the good cause requirement is not satisfied with competent evidence since the only evidence provided, the declaration of Frederick L. Stoker, III, merely provides a recitation of the facts which led to the filing of this motion.

Plaintiff contention that the motion was not properly served in compliance with Evidence Code § 1043(a) upon the government agency that has custody and control of the records is well taken. Upon review of the proof of service of the motion, indeed, the motion was not served upon the governmental agency that has custody and control of the records. Instead, the motion was served only upon the attorneys representing the Plaintiff and Plaintiff in Intervention City of Los Angeles.

Defendant argues that it has established good cause for this non-compliance pursuant to Evidence Code § 1043(d). However, the burden to establish good cause rests of Defendant. Simply stating that LAWA received notice because if LAWA had been served it would have simply forwarded the motion to the same attorney who filed the opposition is insufficient. Otherwise, the statute would have set forth a mechanism for service in this manner which would have been typical for how many other motions are typically served. Instead, this particular statute specifically set forth a distinct notice requirement. Stating that opposing party would have been able to oppose the motion regardless of the notice defect does not constitute good cause.

In addition, Defendant did not provide competent evidence, even in the form of a declaration from counsel, describing the types of records or information sought in compliance with Section 1043(b)(2). The declaration simply provides a conclusory reference to a privilege log but does not describe in sufficient detail the types of records or information that is sought. (Decl., Frederick L. Stoker, III, ¶ 8). A declaration by counsel, made on information and belief, may be sufficient to establish good cause. *People v. Oppel* (1990) 222 Cal.App.3d 1146, 1153, n.6. However, at a minimum, the types of records or information sought should be described with sufficient particularity.

Thus, the Court finds that Defendant has not met the requirements set forth in Evid. Code § 1043(b) to compel disclosure to the Court for an in camera review. Therefore, Defendant Southern Glazer's Wine & Spirits, LLC's Motion for Discovery of Peace Officer Personnel Records is denied without prejudice.

Plaintiff is ordered to give notice of this ruling.